

Anil Kumar v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad (Lucknow Bench) · Single Judge · 14 November 2025 · Writ-A No. 13116 of 2025
· **Interim stay of suspension; listed December 2025**

HEADNOTE

Junior Engineer/SDO suspended for delay in releasing a consumer connection: High Court stays the suspension pending the writ, noting admitted right-of-way hindrance (U.P. Electricity Supply Code, 2005 cl. 4.4(e)) and the officer's undertaking to cooperate in the enquiry.

FACTUAL SUMMARY

The petitioner, a Junior Engineer working as Sub Divisional Officer, challenged his 29 October 2025 suspension by the Managing Director, Madhyanchal Vidyut Vitran Nigam Ltd. A complaint alleged delay in releasing a consumer connection caused crores of departmental loss. He pleaded an unblemished record, only a supervisory role, and that delay was due to right-of-way hindrance covered by Supply Code clause 4.4(e). The department said he had to look after connections under his supervision and was rightly suspended.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4(e)

right of way delay

HOLDING

Where a Sub Divisional Officer was suspended for delay in granting an electricity connection, and it was admitted that right-of-way hindrance caused the delay, the High Court—recording the invocation of clause 4.4(e) that the licensee is not responsible for ROW delay, the officer's supervisory role, and his undertaking to cooperate in the enquiry—stayed the suspension pending consideration of the writ. ¶ 1-2

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond Junior Engineer/SDO suspended for delay in releasing a consumer connection: High Court stays the suspension pending the writ, noting admitted right-of-way hindrance (U.P. Electricity Supply Code, 2005 cl. 4.4(e)) and the officer's undertaking to cooperate in the enquiry. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — SUSTAINABILITY OF THE SUSPENSION AND WHETHER CLAUSE 4.4(E) (ROW DELAY) EXONERATES THE SDO

Matter requires consideration; listed third week of December 2025. Only interim stay granted. ¶ 1-2